



Article: 33

Warrant Article Title:

ACCEPTANCE OF LEGISLATION / M.G.L. c. 60 SECTION 62A

Warrant Article Text:

To see if the Town will vote to adopt the local option provided by General Law Chapter 60 Section 62A, allowing tax collectors to enter into payment agreements for properties in tax title; or take any action related thereto.

Requested By:

Thomas Maloney and ten registered voters

Report Excerpt:

Vote and comment to Town Meeting - No Action (5-0)

The Board voted unanimously that no action be taken on this article, which seeks to adopt, by local option, the provisions of G.L. c. 60, § 62A ("Section 62A"), allowing tax collectors to enter into payment agreements for properties in tax title.

The Board heard from the proponent regarding his reasoning for the article. Specifically, tax title reforms that the state enacted in 2024 allow a community to enact a bylaw to authorize payment agreements between its Treasurer and persons entitled to redeem parcels in tax title. The bylaw must contain specific information, including the term applicable to all agreements and the percentage of accrued interest on the amount of the tax title account that is waived. In addition, the statute requires that the bylaw treat each class of tax title in a uniform manner to ensure that similarly situated taxpayers are treated the same

Town Counsel reported that because Section 62A does not contain a local option provision, the warrant article, as written, was fatally flawed and an attempt to cure it by converting it to a bylaw amendment would probably be deemed out of scope given the article's text. Moreover, it became clear that additional time would be needed to develop standards to be included in a bylaw that authorizes tax payment agreements. The Board expressed gratitude to the proponent for bringing this article forward and expressed hope that a more complete article could be considered in the future.

Vote Language:

That no action be taken on Article 33.

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